

Cr. A. No. 214/2014 vs Ranjodh Singh & Ors on 26 September, 2024

Bench: Tarlok Singh Chauhan, Sushil Kukreja

2024:HHC:9164-DB IN THE HIGH COURT OF HIMACHAL PRADESH SHIMLA Reserved on: 23.9.2024 Decided on : 26.9.2024 .

State of H.P.

.....Appellant

Versus

Ranjodh Singh & ors.

....Respondent

Coram:

The Hon'ble Mr. Justice Tarlok Singh Chauhan, Judge. The Hon'ble Mr. Justice Sushil Kukreja, Judge.

Whether approved for reporting?1No For the Appellant:

r toMr. I.N. Mehta, Mr. Yashwardhan Chauhan, Sr. Addl. A.Gs., Mr. Navlesh Verma, Ms. Sharmila Patial, Addl. A.Gs., Mr. J. S. Guleria and Mr. Raj Negi, Dy.A.Gs.

For the Respondents: Mr. Virender Singh Rathore, Advocate.

Justice Tarlok Singh Chauhan, Judge Aggrieved by the acquittal of the respondents under Sections 498-A, 306 and 201 read with Section 34 of the Indian Penal Code (for short 'IPC'), the appellant-State has filed the instant appeal.

2 The case of the prosecution is that the marriage of Meena Kumari (victim) was solemnized with the accused/respondent No.1 Ranjodh Singh in the month of 1 Whether reporters of the local papers may be allowed to see the judgment? Yes.

2 2024:HHC:9164-DB January 2001 according to Hindu rites and customs. After about 4-5 months of the marriage, the accused persons started .

harassing the victim and demanded dowry from her.

3 In the year 2002, the victim told to her mother that the accused Ranjodh Singh had illicit relations with the accused/respondent No.4. This fact was also told to brother of the victim Sushil Kumar, the complainant, by his mother and thereafter the complainant Sushil Kumar along with his brother Shamsher Singh went to the house of the accused persons at place Kallar.

4 In the year 2005, once again the victim told to her brothers that the accused persons were subjecting her to cruelty. The complainant tried to settle the dispute in the house of the accused persons but in the month of April 2011, the accused persons again gave beatings to the victim. The matter was reported to the Gram Panchayat and the President of Gram Panchayat Kallar requested the complainant to give another chance to the accused persons.

5 However, on 26.7.2011, the victim was abetted to commit suicide by consuming poison at the hands of accused persons. The statement of the complainant Sushil Kumar under 3 2024:HHC:9164-DB Section 154 of Cr.P.C. was recorded, on the basis of which an FIR came to be registered.

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6 During the investigation, it was found that the accused persons used to subject victim to cruelty and abetted her to commit suicide. The accused persons had also destroyed the evidence by washing away vomiting and bed sheets of the victim.

7 After completion of investigation, final report was filed in the court and on finding prima facie case, charges were framed against the respondents under Sections 498-A, 306 and 201 read with Section 34 of the IPC, to which they pleaded not guilty and claimed trial.

8 In order to prove its case, the prosecution examined as many as 16 witnesses in support of its case. Thereafter, statements of the respondents under Section 313, Cr.P.C. were recorded, in which they denied the case of the prosecution.

9 The learned trial court, after evaluating the oral as well as documentary evidence, acquitted the respondents, as aforesaid, constraining the appellant-State to file the instant appeal.

4 2024:HHC:9164-DB 10 It is vehemently argued by the learned Advocate General that the findings recorded by the learned trial court are .

perverse as material evidence on record has been totally misconstrued and misinterpreted.

11 On the other hand, learned counsel for the respondents would emphasis that because of contradictions in the depositions of the material witnesses, which have been highlighted in the impugned judgment, no exception can be taken to the judgment passed by the learned trial court and therefore, the appeal deserves to be dismissed.

12 We have given a thoughtful consideration to the submissions made at the Bar and have also gone through the record of the learned trial court, more particularly, the evidence on record.

13 First of all, we would reiterate the principles laid down by the Hon'ble Supreme Court, governing the scope of interference by the High Court in an appeal filed by the State for assailing the acquittal of the accused upon the findings recorded by the learned trial Court.

14 In *Rajesh Prasad vs. State of Bihar and another* (2022) 2 SCC 471, the three Judge Bench of the Hon'ble 5 2024:HHC:9164-DB Supreme Court encapsulated the legal position governing the field and after considering various earlier judgments held as .

under:-

"28. After referring to a catena of judgments, this Court culled out the following general principles regarding the powers of the appellate court while dealing with an appeal against an order of acquittal in the following words:

"42. From the above decisions, in our considered view, the following general principles regarding powers of the appellate court while dealing with an appeal against an order of acquittal emerge:

(1) An appellate court has full power to review, re-

appreciate and reconsider the evidence upon which the order of acquittal is founded.

(2) The Code of Criminal Procedure, 1973 puts no limitation, restriction or condition on exercise of such power and an appellate court on the evidence before it may reach its own conclusion, both on questions of fact and of law.

(3) Various expressions, such as, "substantial and compelling reasons", "good and sufficient grounds", "very strong circumstances", "distorted conclusions", "glaring mistakes", etc. are not intended to curtail extensive powers of an appellate court in an appeal against acquittal. Such phraseologies are more in the nature of "flourishes of language" to emphasise the reluctance of an appellate court to interfere with acquittal than to curtail the power of the court to review the evidence and to come to its own conclusion.

6 2024:HHC:9164-DB (4) An appellate court, however, must bear in mind that in case of acquittal, there is double presumption in favour of the accused. Firstly, the presumption of innocence is .

available to him under the fundamental principle of criminal jurisprudence that every person shall be presumed to be innocent unless he is proved guilty by a competent court of law. Secondly, the accused having secured his acquittal, the presumption of his innocence is further reinforced, reaffirmed and strengthened by the trial court.

(5) If two reasonable conclusions are possible on the basis of the evidence on record, the appellate court should not disturb the finding of acquittal recorded by the trial court."

15 Further, in case titled as H.D. Sundara and others vs. State of Karnataka (2023) 9 SCC 581, the Hon'ble Apex Court summarized the principle governing the exercise of Appellate jurisdiction, while dealing with an appeal against acquittal under Section 378 Cr.P.C. The relevant paragraphs No. 8 to 10 of the judgment are reproduced as under:-

"8. In this appeal, we are called upon to consider the legality and validity of the impugned judgment rendered by the High Court while deciding an appeal against acquittal under Section 378 of the Code of Criminal Procedure, 1973 (for short, 'Cr.P.C.'). The principles which govern the exercise of appellate jurisdiction while dealing with an appeal against acquittal under Section 378 of Cr.P.C. can be summarised as follows: -

7 2024:HHC:9164-DB 8.1. The acquittal of the accused further strengthens the presumption of innocence;

8.2. The Appellate Court, while hearing an appeal against .

acquittal, is entitled to re-appreciate the oral and documentary evidence;

8.3. The Appellate Court, while deciding an appeal against acquittal, after re-appreciating the evidence, is required to consider whether the view taken by the Trial Court is a possible view which could have been taken on the basis of the evidence on record;

8.4. If the view taken is a possible view, the Appellate Court cannot overturn the order of acquittal on the ground that another view was also possible; and 8.5. The Appellate Court can interfere with the order of acquittal only if it comes to a finding that the only conclusion which can be recorded on the basis of the evidence on record was that the guilt of the accused was proved beyond a reasonable doubt and no other conclusion was possible.

9. Normally, when an Appellate Court exercises appellate jurisdiction, the duty of the Appellate Court is to find out whether the verdict which is under challenge is correct or incorrect in law and on facts. The Appellate Court normally ascertains whether the decision under challenge is legal or illegal. But while dealing with an appeal against acquittal, the Appellate Court cannot examine the impugned judgment only to find out whether the view taken was correct or incorrect. After re-appreciating the oral and documentary evidence, the Appellate Court must first decide whether the Trial Court's view was a possible view. The Appellate Court cannot overturn acquittal only on the ground that after re-appreciating evidence, it is of the view that the guilt of the accused was established 8 2024:HHC:9164-DB beyond a reasonable doubt. Only by recording such a conclusion an order of acquittal cannot be reversed unless the Appellate Court also concludes that it was the only .

possible conclusion. Thus, the Appellate Court must see whether the view taken by the Trial Court while acquitting an accused can be reasonably taken on the basis of the evidence on record. If the view taken by the Trial Court is a possible view, the Appellate Court cannot interfere with the order of acquittal on the ground that another view could have been taken.

10. There is one more aspect of the matter. In many cases, the learned Trial Judge who eventually passes the order of acquittal has an occasion to record the oral testimony of all material witnesses. Thus, in such cases, the Trial Court has the additional advantage of closely observing the prosecution witnesses and their demeanour. While deciding about the reliability of the version of prosecution witnesses, their demeanour remains in the back of the mind of the learned Trial Judge. As observed in the commentary by Sarkar on the Law of Evidence, the demeanour of a witness frequently furnishes a clue to the weight of his testimony. This aspect has to be borne in mind while dealing with an appeal against acquittal."

16 Thus, it is beyond the pale of doubt that the scope of interference by an Appellate Court for reversing the judgment of acquittal rendered by the learned trial Court has to be exercised within the four corners of the following principles:-

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- a) That the judgment of acquittal suffers from patent perversity;
- b) That the same is based on misreading/omission to .

consider material evidence on record;

- c) That no two views are possible and only the view consistent with the guilt of the accused is possible from the evidence available on record.
- d) The Appellate Court in order to interference with the judgment of acquittal would have to record pertinent findings on the above factors, if it is inclined to reverse the judgment of acquittal rendered by the trial Court."

17 Equally settled is the proposition that it is not the duty of the Appellate Court when it agrees with the view of the trial Court on the evidence to repeat the narration of the evidence or to reiterate the reasons given by the trial Court, expression of general agreement with reasons given by the Court, the decision of which is under repeal, would ordinarily suffice (Refer: Girijanandini Devi vs. Rabindernandini Choudhary AIR 1967 SC 124).

18 Before we advert to the merits of the case, it will be necessary to refer to the statutory provisions of offences, for which, the respondent has been charged sheeted.

Section 498A IPC reads as under:-

"498A. Husband or relative of husband of a woman subjecting her to cruelty. Whoever, being the husband 10 2024:HHC:9164-DB or the relative of the husband of a woman, subjects such woman to cruelty shall be punished with imprisonment for a term which may extend to three years and shall also be liable to fine.

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Explanation. For the purpose of this section, "cruelty"

means-

(a) any wilful conduct which is of such a nature as is likely to drive the woman to commit suicide or to cause grave injury or danger to life, limb or health (whether mental or physical) of the woman; or

(b) harassment of the woman where such harassment is with a view to coercing her or any person related to her to meet any unlawful demand for any property or valuable security or is on account of failure by her or any person related to her to meet such demand.]"

Section 306 IPC reads as under:-

"306. Abetment of suicide,- if any person commits suicide, whoever abets the commission of such suicide, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine."

19 While analyzing the provisions of Section 306 IPC along-with the definition of abetment under Section 107 IPC, the Hon'ble Apex Court in Mariano Anto Bruno and another vs. Inspector of Police AIR 2022 SC 4994, has observed in paras 23 to 26 as under:-

"23. Abetment is defined under Section 107 of IPC which reads as under:-

"107. Abetment of a thing:- A person abets the doing of a thing, who-

First- Instigates any person to do that thing; or 11 2024:HHC:9164-DB Secondly- Engages with one or more other person or persons in any conspiracy for the doing of that thing, if an act or illegal omission takes place in pursuance of that conspiracy, and in order to the doing of that thing; or .

Thirdly- Intentionally aids, by any act or illegal omission, the doing of that thing.

Explanation 1- A person who by wilful misrepresentation, or by wilful concealment of a material fact which he is bound to disclose, voluntarily causes or procures, or attempts to cause or procure, a thing to be done, is said to instigate the doing of that thing.

Explanation 2- Whoever, either prior to or at the time of the commission of an act, does anything in order to facilitate the commission of that act, and thereby facilitate the commission thereof, is said to aid the doing of that act."

24. While analyzing the provisions of Section 306 IPC along with the definition of abetment under Section 107 IPC, a two-Judge Bench of this Court in *Geo Varghese Vs. State of Rajasthan and Another* 5 has observed as under:-

"13. In our country, while suicide in itself is not an offence as a person committing suicide goes beyond the reach of law but an attempt to suicide is considered to be an offence under Section 309 IPC. The abetment of suicide by anybody is also an offence under Section 306 IPC. It would be relevant to set out Section 306 of the IPC which reads as under:-

"306. Abetment of suicide. --If any person commits suicide, whoever abets the commission of such suicide, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine."

14. Though, the IPC does not define the word 'Suicide' but the ordinary dictionary meaning of suicide is 'self-killing'. The word is derived from a modern latin word 'suicidium' , 'sui' means 'oneself' and 'cidium' means 'killing'. Thus, the word suicide implies an act of 'self-killing'. In other words, act of death must be committed by the deceased 12 2024:HHC:9164-DB himself, irrespective of the means adopted by him in achieving the object of killing himself.

15. Section 306 of IPC makes abetment of suicide a .

criminal offence and prescribes punishment for the same.

16. The ordinary dictionary meaning of the word 'instigate' is to bring about or initiate, incite someone to do something. This Court in the case of *Ramesh* 5 2021 SCC OnLine SC 873 *Kumar Vs. State of Chhattisgarh*1 has defined the word 'instigate' as under:-

"Instigation is to goad, urge forward, provoke, incite or encourage to do an act."

17. The scope and ambit of Section 107 IPC and its co- relation with Section 306 IPC has been discussed repeatedly by this Court. In the case of *S.S.Cheena Vs. Vijay Kumar Mahajan and Anr*6, it was observed as under:-

"Abetment involves a mental process of instigating a person or intentionally aiding a person in doing of a thing. Without a positive act on the part of the accused to instigate or aid in committing suicide, conviction cannot be sustained. The intention of the legislature and the ratio of the cases decided by the Supreme Court is clear that in order to convict a person under Section 306 IPC there has to be a clear mens rea to commit the offence. It also requires an active act or direct act which led the deceased

to commit suicide seeing no option and that act must have been intended to push the deceased into such a position that he committed suicide."

25. The ingredients of Section 306 IPC have been extensively laid out in M. Arjunan Vs. State, represented by its Inspector of Police 7 which are as under:-

"The essential ingredients of the offence under Section 306 I.P.C. are: (i) the abetment; (ii) the intention of the accused to aid or instigate or abet the deceased to commit suicide. The act of the accused, however, insulting the deceased by using abusive language will not, by itself, constitute the abetment of suicide. There 6 (2010) 12 SCC 190 7 (2019) 3 SCC 315 should be evidence capable of suggesting that the accused intended by such act to 13 2024:HHC:9164-DB instigate the deceased to commit suicide. Unless the ingredients of instigation/abetment to commit suicide are satisfied, accused cannot be convicted under Section 306 I.P.C."

26. In order to convict an accused under Section 306 IPC, the state of mind to commit a particular crime must be visible with regard to determining the culpability. With regard to the same, a two-judge bench of this Court in Ude Singh & Ors. Vs. State of Haryana 8 observed as under:-

"16. In cases of alleged abetment of suicide, there must be a proof of direct or indirect act/s of incitement to the commission of suicide. It could hardly be disputed that the question of cause of a suicide, particularly in the context of an offence of abetment of suicide, remains a vexed one, involving multifaceted and complex attributes of human behavior and responses/reactions. In the case of accusation for abetment of suicide, the Court would be looking for cogent and convincing proof of the act/s of incitement to the commission of suicide. In the case of suicide, mere allegation of harassment of the deceased by another person would not suffice unless there be such action on the part of the accused which compels the person to commit suicide; and such an offending action ought to be proximate to the time of occurrence. Whether a person has abetted in the commission of suicide by another or not, could only be gathered from the facts and circumstances of each case.

16.1. For the purpose of finding out if a person has abetted commission of suicide by another; the consideration would be if the accused is guilty of the act of instigation of the act of suicide. As explained 8 (2019) 17 SCC 30 and reiterated by this Court in the decisions above-referred, instigation means to goad, urge forward, provoke, incite or encourage to do an act. If the persons who committed suicide had been hypersensitive and the action of accused is otherwise not ordinarily expected to induce a similarly circumstanced person to commit suicide, it may not be safe to hold the accused guilty of abetment of suicide. But, on the other hand, if the accused by his acts and by his continuous course of conduct creates a situation which leads the deceased perceiving no other option except to commit suicide, the case may fall

within the four-corners of Section 306 IPC. If the accused 14 2024:HHC:9164-DB plays an active role in tarnishing the self- esteem and self- respect of the victim, which eventually draws the victim to commit suicide, the accused may be held guilty of abetment of suicide. The question of mens rea on the part .

of the accused in such cases would be examined with reference to the actual acts and deeds of the accused and if the acts and deeds are only of such nature where the accused intended nothing more than harassment or snap show of anger, a particular case may fall short of the offence of abetment of suicide. However, if the accused kept on irritating or annoying the deceased by words or deeds until the deceased reacted or was provoked, a particular case may be that of abetment of suicide. Such being the matter of delicate analysis of human behaviour, each case is required to be examined on its own facts, while taking note of all the surrounding factors having bearing on the actions and psyche of the accused and the deceased."

20 In order to bring a case within the purview of Section 306 IPC, there must be a case of suicide and in the commission of the said offence, the person who is said to have abetted the commission of suicide must have played an active role by an act of instigation or by doing certain act to facilitate the commission of suicide. Therefore, the act of abetment by the person charged with the said offence must be proved and established by the prosecution before he could be convicted under Section 306 IPC.

21 In all crimes, mens rea has to be established. To prove the offence of abetment, as specified under Section 107 of the IPC, the state of mind to commit a particular crime must be visible, to determine the culpability. In order to prove mens rea, there has to be something on record to establish or show that the 15 2024:HHC:9164-DB respondents herein had a guilty mind and in furtherance of that state of mind, abetted the suicide of the deceased. The ingredient .

of mens rea cannot be assumed to be ostensibly present but has to be visible and conspicuous. Proceeding with the above understanding of law and applying the ratio to the facts of the present case, what is apparent is that no overt act or illegal omission is seen from the respondents' side, as would be evident from the following discussion.

22 It would be noticed that the specific case of the prosecution is that the deceased committed suicide as her husband i.e. respondent No.1 was having illicit relations with respondent No.4 and this fact according to the prosecution had been disclosed by her to her mother. This has also been so stated by PW8, brother of the deceased. But surprisingly, this fact has not at all been disclosed by the mother of the deceased, Soma Devi, who appeared as PW9, which clearly belies story of the prosecution that the deceased committed suicide because of illicit relationship.

23 Now, adverting to the other aspects of the case regarding victim being physically and mentally tortured to an extent coercing or compelling to commit suicide, it needs to be 16 2024:HHC:9164-DB noticed that star witness in this case is PW8 Susheel, who stated that the victim was being physically and mentally .

tortured by the accused persons and this fact was told by the victim to her mother. He deposed that in the year 2004, he along with his brother had gone to the house of the accused persons and tried to reconcile the matter. He thereafter had also gone to the house of the respondents in the year 2011 and found that the luggage of the victim had been thrown out from the house. He accordingly reported the matter to Gram Panchayat, Myol, where the Pradhan, Gram Panchayat Kallar was also called. He further stated that the husband of Pradhan, G.P. Kallar named Pinki had come to the house of the complainant and on the request of said Pinki, victim was sent to her matrimonial home, but in the month of July 2011, the victim consumed poison and expired.

24 Even though, this witness is alleged to have reported to the Gram Panchayats, but no record of any Panchayat has been produced or examined. Further no person from Gram Panchayat Myol has been examined to corroborate this fact.

17 2024:HHC:9164-DB 25 PW11, Vimal Mohan is the husband of the Pradhan, G.P. Kallar, but he has not supported the version of PW8 that .

he had gone to the house of the complainant and requested the complainant to send the victim to her matrimonial house. He has also not stated that the accused persons used to harass the victim or her parents.

26 At this stage, in case we would advert to the cross-

examination of PW8, then it has specifically come on record that the respondents had not demanded any dowry from the victim at any stage nor any condition was imposed for the marriage. This clearly falsifies the plea put forth by the complainant that the respondents had asked for dowry from the victim. He further stated that the victim and her husband Ranjodh Singh were living separately from other accused persons though they were living in the same house. It has been specifically stated that even the kitchen of the victim was separate from the other accused persons.

27 In such circumstances, question of alleged harassment made by respondents No. 2 to 4 does not arise and clearly demolishes case of the prosecution.

18 2024:HHC:9164-DB 28 PW8 has further admitted in his cross-examination that the victim was working as an agent in a finance company .

since 2010. It is clear that she was not dependent upon the accused persons, therefore, there was no question of their being demand of dowry by the respondents.

29 It also needs to be noticed that as per witnesses examined by the prosecution, more particularly, PW8 has further admitted in his cross-examination that it was the respondents Bikram Singh and Roshni Devi, who had taken the victim firstly to private hospital at Bankhandi and thereafter to Dr.R.P.G.M.C. Tanda, when they found that the victim had consumed poisonous substance.

30 This assumes importance in light of the ratio laid down by the Hon'ble Supreme Court in State of Rajasthan vs. Prithvi Raj, 1995 Supp. (3) SCC 410, wherein it was held that immediate conduct of the accused and his parents in rushing the deceased to the hospital immediately by arranging a jeep is quite consistent with their being innocent.

31 Adverting back to the facts of the present case, it would be noticed that the respondents had tried to save the victim by rushing to hospital for treatment meaning thereby 19 2024:HHC:9164-DB that they made every endeavour to save the victim when they found that she had consumed some poisonous substance. If .

that was not enough, even PW9 Soma Devi and PW10 Santosh Kumari, who are mother and sister of the victim respectively, have categorically stated that the accused persons had not asked for any dowry from them at any point of time and after marriage the victim was residing separately with her husband from other accused persons.

32 It also needs to be noticed that the prosecution had examined PW10 Santosh Kumari to prove that the husband of victim Ranjodh Singh was having illicit relations with respondent No.4, but there is nothing on record to substantiate such allegations given the fact that the mother of the deceased PW9 has not at all deposed about this fact.

33 There is no evidence worth the name to prove that the victim had been harassed at any point of time by the respondents, rather it has specifically come on record that the victim had been residing separately with her husband from the other respondents and their kitchen was also separate. She was having her independent source of income and had the liberty to work in the Finance Company, which belies the case of the 20 2024:HHC:9164-DB prosecution that she was in any way being harassed and tortured by the respondents more particularly respondents No. .

2 to 4.

34 It would be noticed that the learned court below has rightly and carefully scrutinized testimonies of the prosecution witnesses and only thereafter acquitted the respondents on the ground that the prosecution has not been able to prove its case against the respondents beyond all reasonable doubts. The view taken by the learned trial court is plausible as well as possible one.

35 In view of the aforesaid discussions and for the reasons stated hereinabove, we find no merit in the instant appeal and the same is accordingly dismissed, so also the pending application (s), if any.

(Tarlok Singh Chauhan) Judge (Sushil Kukreja) 26.9.2024 Judge (pankaj)